

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ella Mintz	Team: Squad #08	CCRB Case #: 201602493	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 03/10/2016 3:30 PM	Location of Incident: 210 West 55th Street, en route to the MTN Precinct stationhouse; MTN Precinct stationhouse	18 Mo. SOL 9/10/2017	Precinct: 18		
Date/Time CV Reported	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 03/24/2016 11:14 AM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM William Ball	18253	951521	MTN PCT
2. POM Robert Hanes	15495	945804	MTN PCT
3. POM John Tourloukis	10247	957224	MTN PCT
4. SGT Christophe Wit	03123	929374	MTN PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. TEA § 87(2)(b)	[REDACTED]	[REDACTED]	[REDACTED]
2. SGT Jude Sciarillo	02994	926093	MTN PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM William Ball	Discourtesy: In front of 210 West 55th Street in Manhattan, Police Officer William Ball spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM William Ball	Force: In front of 210 West 55th Street in Manhattan, Police Officer William Ball used physical force against § 87(2)(b)	B . Exonerated
C . POM Robert Hanes	Force: In front of 210 West 55th Street in Manhattan, Police Officer Robert Hanes used physical force against § 87(2)(b)	C . Exonerated
D . POM John Tourloukis	Force: In front of 210 West 55th Street in Manhattan, Police Officer John Tourloukis used physical force against Ioannos § 87(2)(b)	D . Exonerated
E . SGT Christophe Wit	Abuse: In front of 210 West 55th Street in Manhattan, Sergeant Christopher Wit threatened to arrest § 87(2)(b)	E . Substantiated
F . POM Robert Hanes	Discourtesy: In front of 210 West 55th Street in Manhattan, Police Officer Robert Hanes spoke discourteously in the presence of § 87(2)(b)	F . Exonerated
G . POM John Tourloukis	Discourtesy: En route to the Midtown North Precinct stationhouse, Police Officer John Tourloukis spoke discourteously to § 87(2)(b)	G . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
H . POM Robert Hanes	Discourtesy: En route to the Midtown North Precinct stationhouse, Police Officer Robert Hanes spoke discourteously to § 87(2)(b)	H . Unsubstantiated
I . POM Robert Hanes	Abuse: En route to the Midtown North Precinct stationhouse, Police Officer Robert Hanes threatened § 87(2)(b) with the use of force.	I . Unsubstantiated
J . POM William Ball	Discourtesy: At the Midtown North Precinct stationhouse, Police Officer William Ball spoke discourteously in the presence of § 87(2)(b)	J . Exonerated

Case Summary

The incident was captured by a video camera operated by the Dream Hotel; the video does not have audio. (See Board Review 01 or attachment below)



§ 87(2)(b) Video.mp4

On March 10, 2016, § 87(2)(b) got into a verbal and physical altercation with Traffic Enforcement Agent § 87(2)(b) in front of 210 West 55th Street in Manhattan. TEA § 87(2)(b) called the police; Police Officer William Ball, Police Officer John Tourlouis, Police Officer Robert Hanes, Sergeant Christopher Wit, and Sergeant Jude Sciarillo, all of the Midtown North precinct, arrived to the scene. When PO Ball first approached § 87(2)(b) he allegedly told him to, “Get up against the fucking wall.” (**Allegation A**) PO Ball, PO Hanes, and PO Tourlouis grabbed § 87(2)(b) arms and placed him against a wall. (**Allegations B, C, D**) § 87(2)(b) coworker, § 87(2)(b) came to the scene and asked § 87(2)(b) if he could call someone for him. Sgt. Wit allegedly threatened § 87(2)(b) with arrest. (**Allegation E**)

When PO Ball, PO Hanes, and PO Tourlouis escorted § 87(2)(b) to the RMP, PO Hanes allegedly told PO Tourlouis to “get in the fucking backseat.” (**Allegation F**) En route to the Midtown North stationhouse, PO Tourlouis allegedly told § 87(2)(b) to “move the fuck over.” (**Allegation G**). During the car ride, § 87(2)(b) complained about his handcuffs being too tight; PO Hanes allegedly told § 87(2)(b) to “Move the fuck over” and said, “If you don’t shut the fuck up, I’m going to break your fucking nose and no one will know.” (**Allegation H and I**) Once arrived at the Midtown North stationhouse, PO Ball was told that he was not going to take the arrest because it was going to be reassigned to another officer; he allegedly responded to this information by saying, “that’s why I’ll never bring a fucking perp in here again.” (**Allegation J**) § 87(2)(b) was charged with § 87(2)(b)

Mediation, Civil and Criminal Histories

- This case was unsuitable for mediation due to § 87(2)(b) arrest.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the third CCRB complaint involving § 87(2)(b) (Board Review 04) § 87(2)(g)
- This is the first CCRB complaint involving § 87(2)(b) (Board Review 05)
- PO Ball has been a member of the NYPD for four years and this is the first case in which he is a subject officer.
- PO Tourlouis has been a member of the NYPD for one year and this is the first case in which he is a subject officer.

- PO Hanes has been a member of the NYPD for eight years and this is the first case in which he is a subject officer.
- Sgt. Wit has been a member of the NYPD for fourteen years and has been a subject in six prior CCRB cases involving ten allegations. There are no substantiated allegations pled against him § 87(2)(g).

Findings and Recommendations

Allegation A–Discourtesy: In front of 210 West 55th Street in Manhattan, Police Officer William Ball spoke discourteously to § 87(2)(b)

Allegation B–Force: In front of 210 West 55th Street in Manhattan, Police Officer William Ball used physical force against § 87(2)(b)

Allegation C–Force: In front of 210 West 55th Street in Manhattan, Police Officer Robert Hanes used physical force against § 87(2)(b)

Allegation D–Force: In front of 210 West 55th Street in Manhattan, Police Officer John Tourloukis used physical force against § 87(2)(b)

§ 87(2)(b) alleged that he got into a verbal and physical altercation with a traffic agent (identified by the investigation as TEA § 87(2)(b) regarding a parking ticket. (Board Review 06) § 87(2)(b) felt that TEA § 87(2)(b) was in the wrong and told him to call his supervisor on his radio, which he did. While waiting for the supervisors, § 87(2)(b) spoke to § 87(2)(b) of the Dream Hotel, § 87(2)(b) and laughed, saying that he was going to file a complaint against TEA § 87(2)(b) for giving him a ticket when he didn’t deserve one. When the police arrived, § 87(2)(b) § 87(2)(b) waved them down, believing they were there to assist him.

PO Ball was the first one to speak to § 87(2)(b) he told him to “get against the fucking wall.” § 87(2)(b) was confused and stated § 87(2)(b) said, “Hey, I’m the one that called you.” The tall officer said, “Get against the fucking wall.” § 87(2)(b) was confused and said, “What? I’m the one that called.” PO Ball repeated “Get against the fucking wall” another two times. At this point, § 87(2)(b) was in shock. He wanted help and he was being treated like he was a criminal. § 87(2)(b) was trying to explain to the officers the situation, but they wouldn’t listen. § 87(2)(b) was moving in the direction of the wall when 5-6 officers grabbed him and pushed him against the wall. § 87(2)(b) was grabbed all over his body; he remembers being grabbed specifically by the elbow and by his shoulder. The officers told § 87(2)(b) to get his back up against the wall, but he couldn’t because PO Hanes partner’s elbow was against § 87(2)(b) back. They kept trying to push him against the wall, causing § 87(2)(b) head to hit the wall multiple times. PO Hanes and PO Tourloukis handcuffed § 87(2)(b) who kept asking the officers what they were doing as he was still in shock.

TEA § 87(2)(b) stated that over the radio, he said that a motorist assaulted him. (Board Review 07) When the officers arrived, TEA § 87(2)(b) pointed out § 87(2)(b) as the man who hit him. After this, four to six officers told him to go against the wall. § 87(2)(b) did not comply. TEA § 87(2)(b) did not hear any officer tell § 87(2)(b) to get against the “fucking wall.” The officers grabbed his arms and placed them behind his back and placed him against the wall. § 87(2)(b) who is § 87(2)(b) coworker at § 87(2)(b), was not present at the time when these allegations occurred. (Board Review 08) § 87(2)(b) and § 87(2)(b) who is a § 87(2)(b) at the Dream Hotel, both state that prior to the physical interaction, § 87(2)(b) was telling the officers that he was the one who called them. (Board Reviews 09 and 10) § 87(2)(b)

[REDACTED] therefore it is

Allegation E-Abuse of Authority: In front of 210 West 55th Street in Manhattan, Sergeant Christopher Wit threatened to arrest § 87(2)(b)

§ 87(2)(b) stated that he believed he asked Sgt. Wit if § 87(2)(b) was going to be arrested and if he could contact someone for him. Sgt. Wit said something along the lines of, "Walk away; this is a police matter. Unless you want to get arrested like him." While § 87(2)(b) could not recall the exact phrasing, he is certain that Sgt. Wit threatened him with arrest. § 87(2)(b) might have said, "I want to see if I can contact someone for him." Sgt. Wit insisted that § 87(2)(b) walk away but § 87(2)(b) could not recall exactly remember how he insisted. § 87(2)(b) felt the most prudent thing to do would be to walk away, which he did. This interaction lasted less than a minute. This interaction occurred while the commotion of the arrest was still happening.

Sgt. Wit did not independently recall interacting with any civilian besides § 87(2)(b). While watching the video, Sgt. Wit stated that when he was speaking to § 87(2)(b) he was attempting to control the scene; he wanted everyone off the sidewalk. . Sgt. Wit did not recall what § 87(2)(b) was saying. Sgt. Wit did not recall if § 87(2)(b) was trying to ask § 87(2)(b) if he could call someone on his behalf. At this point, § 87(2)(b) would not have been able to speak to § 87(2)(b) because he was in police custody. § 87(2)(b) was already agitated and it would not have been a good idea to bring other people onto the scene. When Sgt. Wit was pointing § 87(2)(b) away from the scene, he did not recall exactly what he was saying but believed it was something like, “Keep moving on.” Having watched the video, Sgt. Wit stated that there was nothing that § 87(2)(b) could have been arrested for. Sgt. Wit did not recall telling § 87(2)(b) he could be arrested for not walking away.

The video shows § 87(2)(b) speaking with Sgt. Wit. Sgt. Wit points § 87(2)(b) away from the scene. § 87(2)(b) starts to walk away but appears to hesitate. Sgt. Wit places his hand on § 87(2)(b) back and points him away again. § 87(2)(b) continues walking but turns back and appears to be saying something to Sgt. Wit; Sgt. Wit makes a sweeping gesture toward § 87(2)(b). § 87(2)(b) walks away.

Patrol Guide Procedure 208-01 states that an officer may arrest someone, “for an offense when reasonable cause to believe offense committed in his presence.” (Board Review 18)

§ 87(2)(g)

Therefore it is recommended that **Allegation E** be closed as **substantiated**.

Allegation F- Discourtesy: In front of 210 West 55th Street in Manhattan, Police Officer Robert Hanes spoke discourteously in the presence of § 87(2)(b)

§ 87(2)(b) stated that when PO Hanes, PO Turloukis, and PO Ball, were walking him to the RMP, PO Hanes told PO Turloukis to “get in the fucking backseat.” None of the officers stated that there was any discussion of the seating arrangements; PO Turloukis stated that he usually sits in the back because he is the newest officer. PO Turloukis stated that PO Hanes did not tell him to “get in the fucking backseat”; PO Ball did not hear PO Hanes make this remark.

A discourteous statement, when not directed at anyone aimed specifically and not aimed directly, does not constitute misconduct. PD. V. Cunningham, Oath Index No.1892/99. (Board Review 19)

§ 87(2)(g)

Therefore it is recommended that **Allegation F** be closed as **exonerated**.

Allegation G- Discourtesy: En route to the Midtown North Stationhouse, Police Officer John Turloukis spoke discourteously to § 87(2)(b)

Allegation H- Discourtesy: En route to the Midtown North Stationhouse, Police Officer Robert Hanes spoke discourteously to § 87(2)(b)

Allegation I- Abuse of Authority: En route to the Midtown North Stationhouse, Police Officer Robert Hanes threatened § 87(2)(b) with the use of force

§ 87(2)(b) stated that when PO Tourloukis was getting into the car, he asked the officers, “Where’s he supposed to fit?” When PO Tourloukis got in the car, he stepped on § 87(2)(b) foot and told him to “move the fuck over.” § 87(2)(b) said, “You’re on my foot. I can’t move over.” PO Hanes said, “Move the fuck over.” PO Tourloukis realized that he was on § 87(2)(b) foot and removed his foot from his. § 87(2)(b) then moved over. During the ride, § 87(2)(b) was saying, “Why are you guys arresting me? What is my charge? What are you guys doing? I called you guys for help and you’re arresting me?” § 87(2)(b) asked for his cuffs to be loosened more than five times. PO Hanes slammed on the breaks, which caused § 87(2)(b) to jolt toward the front of the car. PO Hanes then said, “If you don’t shut the fuck up, I’m gonna break your nose and no one will know. Do you understand that?” § 87(2)(b) said, “I’ll shut the fuck up.”

The officers all state that § 87(2)(b) never complained about PO Tourloukis being on his foot. PO Ball and PO Hanes state that § 87(2)(b) stated he was going to call his uncle, who was on the job. PO Ball stated that § 87(2)(b) was moving around in the car so PO Tourloukis asked, “What are you doing?” § 87(2)(b) did not respond to PO Tourloukis’ question. PO Hanes never said anything to § 87(2)(b). PO Hanes never told § 87(2)(b) “If you don’t shut the fuck up, I’m going to break your nose and no one will know.”

PO Tourloukis stated that while in the back, § 87(2)(b) complained about his cuffs being too tight. PO Tourloukis said, “What are you doing?” § 87(2)(b) then screamed, “The cuffs are too fucking tight.” PO Hanes told § 87(2)(b) to stop talking and they would be at the stationhouse shortly. PO Tourloukis did not tell § 87(2)(b) to move the fuck over and PO Hanes never said, “Move the fuck over” or “If you don’t shut the fuck up, I’m going to break your nose and no one will know.”

PO Hanes stated that neither he nor PO Tourloukis ever told § 87(2)(b) to “move the fuck over.” PO Hanes stated that en route to the stationhouse, § 87(2)(b) complained that the officers arrested him for no reason. PO Hanes did not recall if § 87(2)(b) ever complained that his handcuffs were too tight. At some point, PO Hanes heard PO Tourloukis ask § 87(2)(b) “What are you doing?” PO Hanes assumed that § 87(2)(b) was moving in the backseat or doing something that caused PO Tourloukis to say that. PO Hanes did not see § 87(2)(b) moving around because he was concentrating on driving. PO Hanes told § 87(2)(b) to “stop moving.” PO Hanes did not tell § 87(2)(b) to be quiet. PO Hanes did not tell § 87(2)(b) “If you don’t shut the fuck up, I’ll break your fucking nose, and no one will know.”

Patrol Guide procedure 203-09 states that officers must be “courteous and respectful” in their conduct with the public. (Board Review 16) Patrol Guide 203-11 states that officers “must use minimum necessary force” at the scene of a police incident. (Board Review 17)

The officers all deny that PO Hanes or PO Tourloukis told § 87(2)(b) to “move the fuck over.” § 87(2)(g) PO Ball stated that PO Hanes did not speak to § 87(2)(b) while PO Tourloukis stated that PO Hanes told § 87(2)(b) to be quiet. PO Hanes stated he didn’t tell § 87(2)(b) to be quiet and only told him to stop moving. § 87(2)(g)

§ 87(2)(g) it is recommended that **Allegations F, G, H, and I** be closed as **unsubstantiated**.

Allegation J-Discourtesy: At the Midtown North Precinct stationhouse, Police Officer William Ball spoke discourteously in the presence of § 87(2)(b)

§ 87(2)(b) stated that when he arrived to the Midtown North Precinct stationhouse, the arrest was reassigned to an officer who was not on the scene and that when he heard about this PO Ball told PO Hanes, “That’s why I’ll never bring a fucking perp in here again.”

The officers corroborate § 87(2)(b) in that PO Ball was supposed to take the arrest but it was reassigned at the stationhouse. Both PO Hanes and PO Ball state that it was Sgt. Sciarillo who reassigned the arrest. Sgt. Sciarillo stated that he did not reassign the arrest at the stationhouse. PO Hanes, PO Tourlouis, and Sgt. Sciarillo did not hear PO Ball say. “That’s why I’ll never bring a fucking perp in here in again” or use any profanity. PO Ball stated that he was upset when he found out the arrest was going to be reassigned and told Sgt. Sciarillo that it was “bullshit” but he did not say, “That’s why I’ll never bring a fucking perp in here again.”

A discourteous statement, when not directed at anyone aimed specifically and not aimed directly, does not constitute misconduct. PD. V. Cunningham, Oath Index No.1892/99. (Board Review 19)

§ 87(2)(g) Therefore it is recommended that **Allegation J** be closed as **exonerated**.

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date